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(2)

In Re: Robert J. Altmann (Your Name) Petitioner

Supreme Court of Florida 2000; 3DCR
(Respondent's Name)

4DCR; 19 Circuit Court; Harry Simplicity et al; FL Supreme Court

MOTION FOR LEAVE TO PROCEED IN FORMA PAUPERIS

The petitioner,, asks leave to file the attached petition for
a writ of certiorari without prepayment of costs and to proceed in forma
pauperis. Petitioner has previously been granted leave to so proceed in
(name the courts below, if any, that have authorized pauper status in this
case). Petitioner's affidavit in support of this motion is attached hereto.

/s/ (Your Name) Robert J. Altmann

See Rule 34.2 (signature required)

NOV 3

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11 pp

AFFIDAVIT IN SUPPORT C. MOTION FOR LEAVE TO PROCEED IN FORMA PAUPERIS

I, Robert Ahmad ⁹⁵⁻⁶⁷¹⁰ being first duly sworn, depose and say that I am the petitioner in the above-entitled case; that in support of my motion to proceed without being required to prepay fees, costs or give security therefor, I state that because of my poverty I am unable to pay the costs of this case or to give security therefor; and that I believe I am entitled to redress.

I further swear that the responses which I have made to the questions and instructions below relating to my ability to pay the costs of proceeding in this Court are true.

1. Are you presently employed? Yes---- No ☒
 a. If the answer is yes, state the amount of your salary or wages per month and give the name and address of your employer.
 YOUNICE OF THE CLERK SUPREME COURT, U.S.

b. If the answer is no, state the date of your last employment and the amount of the salary or wages per month which you received.
 11/90 about \$1190-

2. Have you received within the past twelve months any income from a business, profession or other form of self-employment, or in the form of rent payments, interest, dividends or other sources?
 Yes---- No ☒

a. If the answer is yes, describe each source of income and state the amount received from each during the past twelve months.
 1

3. Do you own any cash or checking or savings account? Yes ---- No ----

a. If the answer is yes, state the total value of the items owned.
 Citibank 2112887189 may exist was opened in my name with power of attorney, to Laura Ahmad and on balance her property for child support I owe her; account property of Laura Ahmad held on account pending garnishment by State.

4. Do you own any real estate, stocks, bonds, notes, automobiles, or other valuable property (excluding ordinary household furnishings and clothing)? Yes ---- No ----

a. If the answer is yes, describe the property and state its approximate value.
 Laura + Robert Ahmad in per wages and son depend on me for child support

5. List the persons who are dependent upon you for support and state your relationship to those persons.
 Laura + Robert Ahmad in per wages and son depend on me for child support

I declare under penalty of perjury that the foregoing is true and correct.

Executed on: 5/18/95

/s/ Robert Ahmad

United States Supreme Court 95-6710

ORIGINAL

FL Supreme Court #s 86499; 86717; 86716; 86718;

86,608; 86534; 86,722; 86725; 86604; 86,396; 86723; 86367; 86,713; 86,724; 86721; 86712; 86715; 86533; 86603; 86606; 86607; 86720; 86605; 86719; 86,368; 86240; 86535; 86370; 86714

4DCA #s 933701; 952284; 951078; 951722; 951733; 953403;

951821; 951759; 95616; 951045; 95683; 95617; 95618; 95619; 95620; 95621; 95622; 95623; 95624; 95625; 95626; 95627; 95628; 95629; 95630; 95681; 95682; 95830; 952552; 951755; 952448; 952444; 952447; 952457; 952459; 952453; 952447; 952455; 952450; 952456; 952451; 952442; 952449; 952446; 952445; 952454; 952140; 952285; 952144; 952457; 952541; 953104; 953407; 952131;

3DCA # 951617

2DCA #s 951723; 951770; 951721; 951715; 951709

Robert Ahmad

NOV 3

Supreme Court of Florida;

2DCA; 3DCA; 4DCA; 19 Circuit Court Martin County FL et al.

Petition for Writ of Certiorari

Robert Ahmad (1997)

INTC1

1150 SW Alhambra Rd

Indian Town FL

34956

Question Presented for Review

Will Florida State courts be allowed to use petitioners very real poverty and be allowed to require attorney signature on prose filings to stop relief to which petitioner is entitled, from attack torture, permanent and long term injury, and immediate release from unconstitutional imprisonment for years with compensation, being sought by petitioner thereby violating petitioners state and federal constitutional rights of association, expression, access to courts, due process and equal protection of law, to petition government for redress, to be free from discrimination and as direct result denying justice or the hope of it for petitioner?

Certificate Interested Persons

Robert Alford
Robert Butterworth
Anthony Schach
Hon Wayne Miller
30CA Judges
40CA Judges

DC Casanova
20CA Judges
FL Supreme Court Judges
Harry Singleton and subordinates
Robert Alford

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Statement on Citations

Petitioner is denied law Library, use access presence all legal copies services materials to stop this and all legal work making inclusion of supporting authority impossible except from memory.

Statement of Jurisdiction

Jurisdiction vests in this court pursuant to Rules of US Supreme Court 10.1 (b) and 10.1 (c).

Statement of Case

Petitioner sought relief in state courts from torture, attack, state tort and constitutional claims resulting in permanent and long term damage and injury as well as seeking relief from imprisonment in violation of state and federal constitutions for years that requires immediate release. State courts responded by issuing orders dismissing, denying, or indefinitely staying all actions/filings/petitions/complaints/writs/appeals/briefs denying petitioner pauper status despite his very real poverty and requiring attorney signature on prose filings when petitioner is indigent incarcerated, and denied means to even contact attorneys much less being able to hire attorneys, all as means to deny foregoing relief to which petitioner is entitled as matters of fact and law which is unconscionable, keeps petitioner hostage in prison in violation of constitutions and requires relief sought herein, in a timely manner.

Reasons for Granting Writ

Because petitioner has been in prison in violation of constitution for years, has been tortured, is now disabled in wheelchair and seeks relief to which he is entitled as matters of facts and law in state courts, orders by those same state courts (19 circuit court Martin Gundy, FC 1 DCA, 2 DCA, 3 DCA, 4 DCA, Florida Supreme Court) have issued orders denying petitioner all indigent status in civil matters (including Habeas Corpus, thereby keeping him in prison in violation of constitution) and requiring attorney signature on prose filings, pleadings, etc. as means to deny relief and further violate all foregoing constitutional provisions as well as rights of petitioner resulting therefrom.

Petitioner's right to seek and obtain relief in court is inalienable. This court has said access to court is the right upon which all other rights are based. Florida 2 DCA, 4 DCA (with 1 DCA threatening same) 19 circuit court Martin Gundy, FC, and Florida Supreme Court have all issued unconstitutional, unconscionable orders that require reversal by this court. Improper impermissible orders appealed herein were issued and appealed every possible step between court of original jurisdiction and here with each higher court issuing similarly constitutionally violative order for which reversal is sought herein. Exhaustion of possible remedies has occurred.

In Florida Supreme Court Case 86498 that court alleged petitioner challenged sentence as means to deny relief when in fact all Habeas Relief on these issues challenged ongoing unconstitu-

tional imprisonment, and required the relief sought, after every lower court issued orders barring further proceedings to stop review on the merits. The state of Florida admitted entitlement to relief sought (release from custody) by petitioner by failing to oppose any claim in 95-361 CA Attwood v Singletary 19 circuit court Martin Gundy, FC. Immediately after this admission that court issued indefinite stay of proceedings to stop any final decision.

FL DOC has burned holes in petitioner's body, broken fingers to cause him to be unable to write, kept him confined and isolated over 3 years, denies paper pen envelopes copies lawbooks all services materials to stop legal work. (Petitioner has unconstitutional 5 year prison sentence for Driving Under Influence involving no accident)

Conclusion

For foregoing reasons petitioner respectfully submits that this court should accept jurisdiction at this time in the interest of justice.

Certificate of Service

10/31/95 Copy sent to

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Capital

Tallahassee FL

32399

Robert Attwood 649697

MTC

1150 SW Alhambra Rd

Indian Lake FL 34936

Supreme Court of Florida

THURSDAY, OCTOBER 26, 1995

No. 86,499

ROBERT ATTWOOD,

Petitioner,

vs.

HARRY K. SINGLETARY,

Respondent.

ORDER

PER CURIAM.

Robert Attwood petitions this Court for a writ of habeas corpus challenging the sentence he is presently serving at Martin Correctional Institution and gain time lost.¹ We have jurisdiction pursuant to article V, section 3(b)(9) of the

¹ Attwood is serving a five-year sentence for his fourth conviction for driving under the influence.

Florida Constitution.

Including this petition, Attwood has no less than fourteen petitions pending before this Court. This Court has determined that all of Attwood's other pending petitions are without merit and we have directed our Clerk to issue orders, contemporaneous with the issuance of this decision, denying them. Likewise, we find this petition to be without merit.

Attwood has not only burdened this Court, but also he has inundated other courts of this state, both trial and appellate, with frivolous petitions and appeals. Attwood has filed more than a hundred frivolous petitions and appeals in the appellate courts of this state in the past year. Attwood's proclivity for flooding the courts of this state with frivolous petitions and appeals cannot go unabated. The resources of our court system are finite and must be reserved for the resolution of genuine disputes.

On October 11, 1995, in response to this petition for writ of habeas corpus, this Court ordered Attwood to show cause why he should not be barred from filing any more civil petitions and appeals in this Court unless signed by a member of The Florida Bar. Attwood's response to this Court's order to show cause is, at best, disingenuous. Attwood insists that the myriad of petitions and appeals he has filed throughout the state have merit and that he has therefore not abused the judicial system. Further, Attwood contends that neither this Court nor any other

court can require that his appeals and petitions be signed by an attorney. Stated otherwise, Attwood suggests he has an unfettered right to proceed pro se. We disagree.

The Fourth District Court of Appeal has already directed its clerk of court to reject all civil petitions and appeals filed by Attwood unless "accompanied by the proper filing fee or submitted and signed by a member of the Florida Bar." Attwood v. State, Nos. 93-3701 & 95-2284, 1995 WL 539000, at *3 (Fla. 4th DCA Sept. 13, 1995). Similarly, the Second District Court of Appeal has already directed its clerk of court to reject all civil petitions and appeals filed by Attwood unless signed by a member of The Florida Bar. Attwood v. Singletary, No. 95-01770, 1995 WL 495436 (Fla. 2d DCA July 27, 1995). These orders are not without precedent. See, e.g., Martin v. Marko, 651 So. 2d 819 (Fla. 4th DCA 1995); Lowery v. Kaplan, 650 So. 2d 114 (Fla. 4th DCA 1995); Birge v. State, 620 So. 2d 234 (Fla. 1st DCA 1993); Jenkins v. Singletary, 580 So. 2d 905 (Fla. 4th DCA 1991); Platel v. Maguire, Voorhis & Wells, P.A., 436 So. 2d 303 (Fla. 5th DCA), review denied, 440 So. 2d 353 (Fla.), and review denied, 441 So. 2d 632 (Fla. 1983), cert. denied, 465 U.S. 1069, 104 S. Ct. 1422, 79 L. Ed. 2d 747, and cert. denied, 465 U.S. 1107, 104 S. Ct. 1612, 80 L. Ed. 2d 141 (1984); Shotkin v. Cohen, 163 So. 2d 330 (Fla. 3d DCA 1964); see also Day v. Day, 114 S. Ct. 4, 126 L. Ed. 2d 1 (1993); In re McDonald, 489 U.S. 180, 109 S. Ct. 993, 103 L. Ed. 2d 158 (1989).

Attwood has filed no less than forty-five cases with this Court in the past year. Moreover, Attwood has deluged our Clerk's office with incomprehensible correspondence. In fact, in the week following the issuance of this Court's order to show cause, our Clerk's office has continued to receive petitions and correspondence from Attwood. We find that Attwood's pro se activities before this Court have substantially interfered with the orderly process of judicial administration, and we therefore exercise our inherent authority to prevent abuse of the judicial system.

This order should not be construed as a diminution of our support for the principle of free access to the courts. To the contrary, this order furthers the right of access because it permits us to devote our finite resources to the consideration of legitimate claims of persons who have not abused the process.

Accordingly, we deny Attwood's petition for writ of habeas corpus and direct the Clerk of this Court to reject for filing any civil petitions and appeals therefrom unless signed by a member of The Florida Bar.

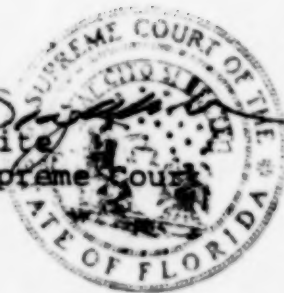
It is so ordered.

GRIMES, C.J., OVERTON, SHAW, KOGAN, HARDING, WELLS and ANSTEAD, JJ., concur

A True Copy

TEST:

Sid J. White
Clerk, Supreme Court



H

cc: Mr. Robert Attwood
Hon. Robert A. Butterworth
Mr. Louis A. Vargas